

Mr. Ward had a large sacral open wound and no control of his bowels, yet Defendants' staff left Mr. Ward sitting in his own feces for more than two or three hours before changing him. Mrs. Ward declared that she complained about the bed length, the restraints, and time it took to change Mr. Ward on numerous occasions. Plaintiffs' expert, Pam Sharkey, R.N. reviewed the First Amended Complaint, the medical records, and the declarations from Plaintiffs and Defendants' expert. Ms. Sharkey opined that Defendants neglected Mr. Ward by letting him sit in his own feces and failing to provide a proper bed. Ms. Sharkey further provides the regulations regarding physical restraint and opines that Defendants did not follow them by failing to obtain consent from Mr. Ward and failing to inform the Wards that they had the right to refuse. Plaintiffs have raised triable issues of material fact as to the First Cause of Action.

The Second Cause of Action alleged Loss of Consortium. "There are four elements to a cause of action for loss of consortium: '(1) a valid and lawful marriage between the plaintiff and the person injured at the time of the injury; (2) a tortious injury to the plaintiff's spouse; (3) loss of consortium suffered by the plaintiff; and (4) the loss was proximately caused by the defendant's act.' " *Vanhooser v. Superior Court* (2012) 206 Cal. App. 4th 921, 927, citing *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 746, fn. 2. Both parties agree that this claim is derivative of the First Cause of Action. The same analysis applies.

The Motion for Summary Judgment is **DENIED**. Defendants are to provide an Order consistent with the Court's ruling.

WELLS FARGO BANK, N.A. VS. KAISER

Case Number: 24CVG-00725

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Wells Fargo Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Lindsay Kaiser by mail on January 28, 2025. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order has been lodged and will be executed.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (“Pitchess”): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of Plaintiff’s peace officer personnel records from custodian and non-party Shasta County Sheriff’s Office. Plaintiff does not oppose the Motion. However, an Opposition has been filed by Shasta County.

Merits of Motion: A motion to obtain a peace officer’s personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: “1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard. 2) A description of the type of records or information sought” and “3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records.” Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. “Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the “materiality” of the information to the subject matter of the pending litigation and states upon “reasonable belief” that the agency has the type of information sought.” *Id.* This initial burden is a “relatively low threshold for discovery”. *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a “plausible factual foundation” for how the records are material to the subject matter of the pending litigation. *Id.* A “good cause” declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevance. *Riske, supra* 6 Cal.App.5th at 655-56.

Plaintiff’s Third Amended Complaint asserts causes of action for sexual harassment and retaliation in violation of the FEHA and failure to prevent harassment by the Redding Police Department. Plaintiff is a former Deputy Sheriff with the Shasta County Sheriff’s Office. Plaintiff was deposed in this matter and testified to alleged mistreatment by coworkers at the SCSO, and discussed alleged retaliation and hostile workplace conduct which is similar to her allegations against the City of Redding. Plaintiff also testified regarding complaints and performance issues during her employment with the County. This provides the factual foundation for how her SCSO records are material to the subject matter of the pending litigation. The City’s discovery request is narrowly tailored to lead to the discovery of admissible evidence. Specifically, the City Seeks: 1) Plaintiff’s employment evaluations; 2) Any disciplinary documents issued to Plaintiff; 3) Documents related to Plaintiff’s separation of employment; 4) Any complaints made by Plaintiff relating to allegations of sexual harassment, discrimination or workplace retaliation; 5) Any workplace investigations

involving alleged misconduct by Plaintiff; 6) Any workplace investigations involving allegations of misconduct made by Plaintiff; and 7) Plaintiff's wage records for the last four months of her employment.

The Court has reviewed each of the categories above in light of the evidence and argument provided in the Declaration of Nathan Jackson to determine whether good cause exists for each category. Given Plaintiff's allegations, the Court finds that the information and documents sought are material to Plaintiff's claims or Defendant's defenses. The documents are relevant and would either be admissible or could potentially lead to the discovery of admissible evidence.

The Motion is GRANTED. The Court will conduct an *in-camera* review of the documents prior to their release. All released documents will be designated Confidential under the protective order in this case. A proposed order was lodged with the Court but it will not be executed. Defendant is ordered to submit a new proposed order which omits the last two sentences regarding depositions. That portion of the proposed order is overly broad and is not properly before the Court. **An appearance is necessary on today's calendar to discuss scheduling the *in-camera* review.**

9:00 a.m. Review Hearings

ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC, ET AL.

Case Number: 24CV-0204149

This matter is on calendar for review regarding status of responsive pleadings and trial setting. Defendants filed their Answer on April 3, 2025. It appears that this matter is ready for trial setting. However, the Court notes that today's hearing was reset from May 12, 2025 to June 2, 2025 due to an emergency courthouse closure. Notice of today's hearing was sent to Defendants but was not sent to Plaintiffs due to a clerical error. If all parties appear today the Court is prepared to set the matter for trial. This matter is designated a Plan III case, and the Court intends to set a trial date no later than January 13, 2026. Neither party has posted jury fees. The Court notes that Defendant filed a Notice of Posting Jury Fees on April 3, 2025, but the fees do not reflect as posted in the Court's file. This discrepancy may be addressed with the clerk. The parties are granted 10 days leave to post jury fees. If all parties are not present today due to the notice defect, today's hearing will be continued for trial setting.

GERALD E. DORFMAN AND SANDRA T. DORFMAN FAMILY TRUST VS. DRYSDALE, ET AL.

Case Number: 24CVG-01761

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is directed to close the file. No appearance is necessary on today's calendar.

MARLIN VS. POPPIE'S PIZZA INC, ET AL.

Case Number: 24CV-0204099

This matter is on calendar for trial setting. This matter is designated a Plan III case, and the Court intends to set trial no later than January 13, 2026. Both sides have posted jury fees. The parties